TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to "grant".** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV03695

WELLS FARGO, N.A. v. ROSITANO

(UNOPPOSED) PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Stacy L. Rositano seeking $22,285.58 for an unpaid credit card debt. There is one cause of action for breach of contract. Defendant, who is self-represented, filed an answer and affirmative defenses. Despite proper service, defendant did not oppose the motion.

II. UNDISPUTED MATERIAL FACTS

Plaintiff and defendant entered into a written agreement wherein the parties agreed to plaintiff extending credit to defendant in exchange for repayment of the principal, plus interest and applicable fees. Plaintiff issued defendant a credit card which was mailed with a card holder agreement to the address defendant provided in the credit card application and agreement. (UMF 1.) Defendant accepted the agreement and its terms by using the subject credit card in that defendant activated the card and made charges and payments, incurring a balance thereon. (UMF 2.) The agreement provided that defendant was extended credit whereby defendant could charge goods, services, and/or cash advances in exchange for the repayment of the principal amount plus interest and finance charges. (UMF 3.) Pursuant to the terms of the consumer credit card customer agreement & disclosure statement, defendant agreed to pay reasonable attorney's fees and court costs in the event legal action was necessary to collect any balance due. (UMF 4.) It was understood between plaintiff and defendant that defendant would receive statements pertaining to defendant's account which would reflect all charges, payments, minimum required payments, and any fees and interest incurred. (UMF 5.)

Plaintiff sent defendant statements for the subject account reflecting all charges, payments, minimum payment and any fees and interest incurred. (UMF 6.) Plaintiff performed all of its obligations under the agreement by extending credit to defendant. (UMF 7.) Defendant made payments, charges, and incurred a balance on the subject account. (UMF 8.) Defendant disputed only one charge, credit, or balance due on the account in the amount of $110.95, for which plaintiff credited $104.76 back to the account. (UMF 9.)

Defendant stopped making payments towards the balance on the subject account. Defendant's last payment was on September 14, 2024, in the amount of $20.00. (UMF 10.) Defendant breached the agreement by failing to pay as agreed, leaving an unpaid balance of $22,285.58. (UMF 11.) The balance on defendant's account is overdue and defendant has failed to pay it or any part of it. As a result of defendant's breach, plaintiff has been damaged in the amount of $22,285.58. (UMF 12.)

III. SUMMARY JUDGMENT LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law…." (Code Civ. Proc., § 437c, subd. (c).)[1] In making this determination, the court may rely on "affidavits, declarations … and matters of which judicial notice shall or may be taken." (§ 437c, subd. (b).)

A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. (§ 437c, subd. (p); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519; *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.) The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. (*Ibid*). Courts "liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment or adjudication as a matter of law. (§ 437c, subd. (c); *Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

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[1] All statutory references are to the Code of Civil Procedure, unless otherwise stated.

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Each material fact must have a citation to supporting evidence. (§ 437c, subd. (b)(1).) If a triable issue is raised as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

IV. DISCUSSION

The court finds the above facts are sufficient to satisfy the elements of plaintiff's claims. The burden therefore shifts to defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. Defendant has failed to meet this burden as she has not filed an opposition and raised any triable issue of disputed fact. Plaintiff is therefore entitled to judgment against defendant in the amount of $22,285.58.

Plaintiff's request for judicial notice of the pleadings in this action is denied; the court need not take judicial notice of its own file.

No. 23CV01708

SEASCAPE RESORT OWNERS' ASSN. v. SEASCAPE RESORT, et al.

PLAINTIFF/CROSS-DEFENDANTS SEASCAPE RESORT OWNERS' ASSOCIATION, STACIE POWER, AND ELLYN RUBIN'S MOTION FOR JUDGMENT ON THE PLEADINGS TO SECOND AMENDED CROSS-COMPLAINT

The motion is denied as moot. Based on the settlement between the Association, Ellyn Rubin, and Seascape Resort Ltd. (SRL), the court finds this motion, filed two months prior to the settlement, is largely moot both as to parties and claims. To the extent remaining cross-defendant Power seeks to narrow the issues against her posed by SRL's second amended cross-complaint, the court orders the parties to further meet and confer. (Code Civ. Proc., § 439.)

DEFENDANT SEASCAPE RESORT LTD.'S MOTION FOR GOOD FAITH SETTLEMENT

The motion for good faith settlement as to plaintiff Seascape Resort Owners' Association (Association), cross-defendant Ellyn Rubin, and defendant Seascape Resort Ltd. (SRL) (settling parties) agreement is granted. Based on the evidence before the court, the settlement's monetary and non-monetary consideration is within the reasonable range of the settling tortfeasors' proportional share of comparative liability for the alleged harm. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.)

On May 4, 2026, settling parties entered into a written settlement agreement. (Pratt Declaration, Exhibit A.) Cross-defendant Staci Power declined to settle.

The Association filed a brief in support; Stacie Power and Intervenors Wallis, Caporn and Manrao (Intervenors) filed oppositions. The court declined to consider the declarations and exhibits filed one and two court days late by Intervenors (which amounted to 1,871 pages) or the late-filed declarations by Greg Pourroy and Diane Pourroy. (Cal. Rules of Court, rule 3.1300(d); *Bozzi v. Nordstrom, Inc*. (2010) 186 Cal.App.4th 755, 765-766.) Late-filed papers put the moving party at a significant disadvantage particularly when they are as voluminous as these.

I. LEGAL STANDARDS

Determining good faith requires the court to determine the reasonable range of the settling tortfeasor's proportional share of comparative liability for the plaintiff's injuries.

> "[T]he intent and policies underlying [Code of Civil Procedure] section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (*Tech-Bilt, Inc., supra,* 38 Cal.3d at p. 499.)

"The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6." (*Id.* at pp. 499-500.) Where there is a factual dispute, determination of good faith is left to the court's discretion. (*Id*. at p. 502.)

II. SETTLEMENT TERMS

The essential settlement terms are:

1. Association agreed to abide by and enforce the rulings of this court and the governing documents of the Resort.
2. SRL agreed to vacate specific parking spots and provide access to certain utility rooms.
3. Association and SRL agreed upon a plan for landscaping a certain portion of the Resort.
4. SRL and Association appointed representatives to work together to resolve current and future permitting issues with the County of Santa Cruz.
5. SRL and Association agreed to negotiate and enter into a management contract for managing the Association.
6. Association and SRL calculated their monetary claims against each other related to accounts receivables and accounts payable, and determined a fair value for credits and amounts owing, resulting in a credit of $65,000.00 to SRL.
7. Damages payment of $ 215,000.00 to SRL, which has been made. SRL claimed monetary damages of over $3 million for lost business and damage to its business reputation, as well as prevailing party attorney's fees.
8. Contained in the Settlement Agreement is the following language consistent with the Court's ruling:

> WHEREAS the Project is subdivided as a condominium project such that individual owners own condominium units but must make their units available for rent, and are restricted under the zoning ordinance and governing documents, such that an owner of a Unit may occupy his or her unit up to 90 days in one calendar year and not more than 29 consecutive days, and must use 24-hour on site centralized management. The Association is also required to use 24-hour on site centralized management for the management of the Common Area and to centrally collect TOT.

III. COURT RULINGS SINCE THIS MOTION WAS FILED

Since this motion was filed, the court has issued the following rulings in this action:

- Denied the Intervenors' Motion to Reconsider. (July 27, 2026 Order.)
- Denied the Intervenors' Motion for Summary Adjudication. (July 27, 2026 Order.)
- Entered judgment for SRL on its Motion for Summary Adjudication. (August 3, 2026 Judgment.)
- Dismissed the Intervenors' First Amended Complaint in Intervention without leave to amend. (August 3, 2026 Order.)
- Dismissed Power West Properties. Inc's First Amended Complaint in Intervention without leave to amend. (August 3, 2026 Order.)

IV. *TECH-BILT* ELEMENTS ARE SATISFIED

The court finds the *Tech-Bilt* factors are met here:

1. Rough approximation of plaintiff's total recovery: Plaintiff obtained the non-monetary relief it sought.
2. Settlor's proportionate liability: This case predominantly sought injunctions and declaratory relief by both sides. Those issues were largely determined following this court's determination of SRL's motion for summary adjudication. Association's damages and attorneys' fees exposure following that ruling was purportedly $3 million.
3. Amount paid in settlement: Monetary: $215,000.00 to SRL and a credit to SRL of $65,000.00 for accounts receivable/payable; non-monetary: resolution of key on-site Resort management issues (i.e., parking spaces, reps to communicate with County re outstanding code obligations, landscaping, management contract).
4. Allocation of settlement proceeds among plaintiffs: N/A.
5. Financial conditions and insurance policy limits of settling defendants: Unknown.
6. Existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants: Despite Intervenors' arguments that the Association Board who settled the matter was entirely pro-SRL and therefore biased, the Association Board was elected and served in that elected capacity to settle this action. "[A]nyone who buys a unit in a common interest development with knowledge of its owners association's discretionary power accepts 'the risk that the power may be used in a way that benefits the commonality but harms the individual.' [Cit. omitted.] Generally, courts will uphold decisions made by the governing board of an owners association so long as they represent good faith efforts to further the purposes of the common interest development, are consistent with the development's governing documents, and comply with public policy. [Cit. omitted.]" (*Nahrstedt v. Lakeside Village Condominium Assn.* (1994) 8 Cal.4th 361, 374.) The settlement was reached after arms-length negotiations between the parties (at least four mediation sessions over four years with two retired judges).

Intervenors argue the motion must be denied because section 877.6 does not authorize a good-faith determination to adjudicate Intervenors' separate property rights, moving parties have not carried their burden under *Tech-Bilt* necessitating discovery, and the settlement is "out of the ballpark." They also allege the Association Board that approved the settlement colluded with SRL since all Board members were pro-SRL policies and practices. Intervenors seek an order that the settlement is unenforceable and rely on an "expert" appraisal report that owners are owed $55 million in aggregated damages. (Caporn Decl. Ex. GG.) Generally, Intervenors impermissibly attempt to re-litigate the entire action following this court's dismissal of their complaint in intervention.

The court is not persuaded. First, Intervenors' expert report concedes it is based on extraordinary assumptions and hypothetical opinions.[2] Second, following Intervenors' bias argument, any Association member is conflicted, because they either use SRL's management services or not. Third, speculative opinion regarding Association Board elections and recalls is outside the scope of this motion and inadmissible, as are opinions regarding SRL's efforts to sell its business and amend the CC&Rs. Intervenors cannot enlarge the issues in the case. (*Truck Ins. Exchange v. Superior Court* (1997) 60 Cal.App.4th 342, 346.) Intervenors are also not joint tortfeasors; there is no remedy for them left in this action. Finally, Intervenors' "separate property rights" to self-rent and access certain recreational facilities maintained by SRL has been rejected by this court multiple times.

The court is also not persuaded by Ms. Power's argument that the motion seeks relief that goes beyond the confines of the statute since she never articulates that relief. As for her argument that the settlement fails to provide a rough approximation of plaintiff's total recovery and the settlor's proportionate liability, the court recognizes this case presents significant monetary and non-monetary relief for both sides which can be hard to value. "Although an offer of settlement must bear some relationship to one's proportionate liability, bad faith is not ' 'established by a showing that a settling defendant paid less than his theoretical proportionate or fair share.' [Citation.]' (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates*, *supra*, 38 Cal.3d at p. 499.) In other words, 'a 'good faith' settlement does not call for perfect or even nearly perfect apportionment of liability.' (*Abbott Ford, Inc. v. Superior Court*, *supra*, 43 Cal.3d at p. 874.) All that is necessary is that there be a 'rough approximation' between a settling tortfeasor's offer of settlement and his proportionate liability. (*Bay Development, Ltd*. v. *Superior Court* (1990) 50 Cal.3d 1012, 1027-1028 [269 Cal.Rptr. 720, 791 P.2d 290].)" (North County Contractor's Assn. v. Touchstone Ins. Services (1994) 27 Cal.App.4th 1085, 1090-1091.) "The trial court has wide discretion in deciding whether a settlement is in good faith and in arriving at an allocation of valuation of the various interests involved." (*Id*. at p. 1095.)

The court overrules evidentiary objections by Intervenors to the declarations of Sharon Pratt, Fowzy Shacker, and Kay Holcomb. The declarants' statements at issue do not lack foundation, or constitute hearsay or improper legal opinion or argument.

The court grants defendant's request for judicial notice supporting their reply (Exhibits 1 and 2 -- court transcripts from this action's hearings on May 24, 2026, and July 1, 2026, and

[2] The report also contains repeated typos, including that the "statements of fact contained in this report are turd [sic] and correct."

Exhibit 3 -- April 23, 2026 order in *Power West Prop. Inc. v. Seascape Resort Ltd*., Santa Cruz County Superior Court, no. 25CV03656). (Evid. Code § 452, subd. (d).)

DEFENDANT RESORT'S MOTION TO COMPEL FURTHER RESPONSES BY CROSS-DEFENDANT STACIE POWER TO SPECIAL INTERROGATORIES, SET ONE, AND FOR MONETARY SANCTIONS

DEFENDANT RESORT'S MOTION TO COMPEL FURTHER RESPONSES BY CROSS-DEFENDANT STACIE POWER TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR MONETARY SANCTIONS

The motions are granted. Cross-defendant Stacie Power is ordered to serve verified code-compliant responses to the following discovery requests no later than September 18, 2026: Special Interrogatories, Set One, nos. 1-13, and Request for Production of Documents, Set One, nos. 3, 8, 11, 13, 15, 17, 19, 21-27, 34-38, 44.

Defendant Seascape Resort served special interrogatories, set one, and requests for production of documents, set one, on cross-defendant Stacie Power on November 18, 2025. (Loweth Declarations ¶ 6.) The parties agreed to two extensions, and Power's responses and documents were due by January 9, 2026. (Loweth Decls. ¶ 7.) Power served unverified boilerplate objections and responses on January 9, 2026, but has since failed to serve substantive responses, verifications or responsive documents. (Loweth Decls. ¶¶ 8-12.)

Special Interrogatories, Set One, nos. 1-13: These interrogatories seek information as to responding party's ownership interest in, role, salary, and compensation from Power West Properties, Inc. (Power West), that entity's services to the Seascape Resort Owners' Association (Association), its marketing efforts to the Association, communication between it and any members of the Association, and events directed at those members. They appear appropriate for discovery since Ms. Power, in her individual capacity, is admittedly a current or former officer and member of the board of directors of the Association and is an owner/shareholder/director of Power West. She therefore has the ability to answer the questions posed as both an owner of that firm and a party to this lawsuit. Ms. Power contends these interrogatories are improper under the California Financial Privacy Act (FIPA) (Financial Code §§ 4050 et seq.) and that since Power West is an intervener, defendant should seek the information from it. First, FIPA prevents financial institutions from sharing consumer information which is not at issue here. (Fin. Code §§ 4051.5, 4052.5.) Even if FIPA applied, the parties could craft a protective order to assuage Ms. Power's concerns. Second, Power West's complaint in intervention has been dismissed which limits defendant's ability to serve it with discovery on these topics. Finally, relevancy is not a proper basis to refuse to provide discovery responses and the court does not find these interrogatories harassing or oppressive.

Request for Production of Documents, Set One, nos. 3, 8, 11, 13, 15, 17, 19, 21-27, 34-38, 44: These requests seek documents describing Ms. Power's ownership in Power West, earnings made from it, communications and marketing efforts from Power West to any member of the Association from 2019 to the present, communications between Ms. Power and other former intervenors Ellyn Rubin and Julie Manrao from 2019 to the present, and messages she sent to a Facebook group "Seascape Owners Forum." They too appear appropriate for discovery.

The court declines to impose sanctions against either party.

MOTION FOR LEAVE TO INTERVENE BY ANNIE HILDEBRAND AND JEFF CROTHERS

The motion is denied.

Proposed intervenors Annie Hildebrand and Jeff Crothers seek to intervene on behalf of the Seascape Resort Owners' Association (Association) against Seascape Resort Ltd. (SRL) related to SRL's alleged new exclusive rights to the main and south bluff pools and recreational facilities and the prohibition of self-renting by owners. They generally allege improper self-dealing by SRL and failure to obtain the necessary votes of members for any change to the use of common areas. The proposed complaint states claims for violation of Civil Code section 4600 [exclusive use of common area]; breach of fiduciary duty; enforcement of governing documents (Civil Code section 5975); prescriptive easement; declaratory relief; unfair competition; and quiet title. (Golden Declaration.) These claims are identical to those posed by former intervenors Wallis, Caporn, and Manrao.

Both the Association and SRL filed oppositions to the motion.

The court has discretion to permit intervention when a party has a direct, not consequential, interest in the matter in litigation. (*Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1200; *Kobernick v. Shaw* (1977) 70 Cal.App.3d 914, 918.) In addition to a direct interest, intervention must not enlarge the issues raised by original parties and not tread on the rights of the original parties to conduct their own lawsuit. (See *Kuperstein v. Superior Court* (1988) 204 Cal.App.3d 598, 600.) The reasons for intervention must outweigh any opposition. (*Truck Insurance Exchange v. Superior Court* (1997) 60 Cal.App.4th 342, 346.)

Proposed intervenors' substantive allegations appear to relate to the use of the main and south bluff pool recreational facilities and SRL's alleged improper self-dealing. These allegations, if included in the complaint, appear to mimic those of other Intervenors Wallis, Caporn, and Manrao, who sought to unwind this court's December 31, 2025, order on SRL's motion for summary adjudication. This court has already determined that intervenors are bound by that order and cannot now seek different relief on behalf of the Association, when the

Association has already litigated those very issues. (*Hospital Council of Northern Cal. v. Superior Court* (1973) 30 Cal.App.3d 331, 336 [intervenors are "bound by the record of the action at the time"].) Intervenors "must not enlarge the issues raised by the original parties." (*Lincoln National Life Ins. Co. v. State Bd. of Equalization* (1994) 30 Cal.App.4th 1411, 1422.)

The Association had standing to institute this action without joining its members, did so, obtained a result that failed to please some of its members, and now proposed intervenors seek to overturn or void that order via their complaint in intervention. However, it appears that the proposed complaint would address the issues already determined by this court with some new allegations regarding board members' alleged self-dealing. The court has already determined that the Association has a duty to enforce what is required under the governing documents, declared that the main pool and the south bluff pool are the Exclusive Use Areas of Units 85 and 534, that the owner(s) of those units have control over who can access the pools, and that centralized, 24-hour on-site management of the visitor accommodation units is required. (Order.)

Further, the authority to manage the business and affairs of an owner's association is vested in its board of directors, not its members. (*Turner v. Victoria* (21023) 15 Cal.5th 99, 113; *Grosset v. Wenass* (2008) 42 Cal.4th 1100, 1108.) This includes "the authority to commence, defend, and control actions on behalf of" the association. (*Ibid*.) The decision to pursue a claim on the association's behalf "falls squarely with the authority vested in" an association's board. (*Id*. at p. 1114.) "The fundamental purpose of a derivative action is to provide a means by which [a member] may seek to enforce the rights of a[n] [association] when the [ ] board refuses to do so." (*Ibid*.) Intervention by association members is justified when the association's board fails to exercise good faith in defending an action against it. (*Cont'l Vinyl Prods. Corp. v. Mead Corp.* (1972) 27 Cal.App.3d 543, 551-552.) Here, the Association did not *refuse* to enforce any rights; instead, it considered the demands, determined they were unwarranted, and then fully litigated the issues related to control of the main and south bluff pools and related recreational facilities.

No. 24CV00823

<u>NIXON v. BENSON et al.</u>

<u>(UNOPPOSED) PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT</u>

Parties to appear to update the Court on their settlement efforts.

This matter was originally set on June 9, 2026, and the Court's tentative ruling indicated the unopposed motion would be granted and judgment entered pursuant to the terms of the parties' settlement. Defendants failed to file any timely opposition to that motion. At hearing, plaintiff's counsel indicated the parties were working to complete their settlement and needed more time.

"A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to enter judgment pursuant to the terms of the settlement." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, citations omitted.)

"A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.) An essential element of any contract is mutual consent. (*Id*. at p. 811.)

The parties executed a Memorandum of Settlement, effective October 10, 2025 (see Declaration of DiBenedetto, Exhibit A). They agreed to be bound by its terms; "[i]n order to resolve this dispute, the parties agree as follows:…." The settlement terms included in that Memorandum, listed below, may be confirmed and no further formal settlement agreement would be necessary:

> 1. Betty Benson, Trustee of the Benson Family Trust A Under Agreement Dated November 30, 1994 (hereinafter "Benson") grants to Debera Nixon (hereinafter "Nixon") a non-exclusive easement along their shared border between 527 Middlefield Drive and 529 Middlefield Drive, Aptos. The easement extinguishes upon the removal of the section of the structure at 527 Middlefield Drive that encroaches onto the 529 Middlefield Drive property.
>
> 2. Benson agrees to remove approximately 26 and 1/2 linear feet of the small fence demarcating the approximate property line. The fence shall be removed upon payment in full of the monies set forth in Section 3 below.
>
> 3. Debera Nixon agrees to pay Betty Benson the sum of $15,000.
>
> 4. Debera Nixon agrees to dismiss her complaint with prejudice against all parties; each side to bear their own fees and costs.

5. Debera Nixon agrees to limit movement of her garbage and recycling containers to 7 a.m. & 7 p.m., seven days per week.

6. Debera Nixon agrees not to store any garbage or recycling containers to the right side of the window's edge up to the backyard gate of the home at 527 Middlefield Drive.

7. Debera Nixon grants Benson access to 527 Middlefield Drive for purpose of Benson painting or staining or otherwise maintained the shared fence upon reasonable notice.

8. Any work performed by any party along the area of the granted easement shall be performed by licensed contractors with appropriate insurance coverage.

9. Benson agrees to consult with their contractors to address any potential privacy concerns raised by the use of security cameras.

10. Benson permits Nixon to install garden items on the Nixon side of the shared backyard fence.

11. Nixon may install a gate that attached [sic] to the Benson fence post.

12. This agreement with be further memorialized in a written settlement agreement with appropriate documents.[3]

13. This agreement is meant to bind the parties and is enforceable in court per CCP Section 664.6.

[3] This provision is unnecessary considering the parties have already executed a settlement document.